

PCU325958 Figueroa, Shallon vs. Rivera, Primitivo et al

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-08-18

Motion: Plaintiff's Motion to Compel Further Responses by Defendant Valazquez as to (1) Form Interrogatories (2) Special Interrogatories and (3) Requests for Production of Documents; Sanctions; (4) Defendant Velazquez's Motion to Compel Further Responses by Plaintiff as to Special Interrogatories, Requests for Production of Documents and Requests for Admissions.

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Re: Figueroa, Shallon vs. Rivera, Primitivo et al

Case No.: PCU325958

Date: August 18, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Plaintiff's Motion to Compel Further Responses by Defendant Valazquez as to (1) Form Interrogatories (2) Special Interrogatories and (3) Requests for Production of Documents; Sanctions; (4) Defendant Velazquez's Motion to Compel Further Responses by Plaintiff as to Special Interrogatories, Requests for Production of Documents and Requests for Admissions.

Tentative Ruling:

(1), (2) and (3): To deny the motions; to deny the requests for sanctions;

(4): To deny the motions, to deny the request for sanctions.

Plaintiff's Motion to Compel Further Responses by Defendant Valazquez as to (1) Form Interrogatories (2) Special Interrogatories and (3) Requests for Production of Documents; Sanctions;

Facts Common to (1), (2) and (3)

In this negligence, breach of habitability, nuisance and breach of covenant of quiet enjoyment action, Plaintiff sued, amongst other defendants, Defendant Alex Velasquez ("Defendant"). On January 15, 2026, Plaintiff filed an amended complaint alleging the same causes of action.

On February 25, 2026, Plaintiff served first sets of (1) Form Interrogatories (2) Special Interrogatories and (3) Requests for Production of Documents.

On March 18, 2026, Defendant served responses to these sets of discovery.

On March 31, 2026, Plaintiff sent a meet and confer letter identifying various issues with the sufficiency of the responses and objections, seeking further, supplemental responses by April 14, 2026 or seeking an extension of Plaintiff's deadline to file a motion to compel further responses.

On April 3, 2026, Defendant responded to the meet and confer letter, stating:

"In the interest of cooperation and to allow the parties additional time to resolve any issues without court intervention, I agree to the three-week extension of Plaintiff's deadline to file a Motion to Compel, extending the deadline to May 26, 2026. This agreement is made without waiving any objections, rights, or protections previously asserted.

I remain willing to meet and confer in good faith. However, I stand by the objections and responses previously served, as they are appropriate, complete, and compliant with my discovery obligations."

No further meet and confer appears to have occurred and these motions were filed May 26, 2026.

In addition to seeking further responses, Plaintiff seeks sanctions of \$1,760 as to each motion.

In opposition, Defendant indicates service of documents on May 21, 2026 and that this otherwise satisfies the discovery obligations of Defendant as to the interrogatories.

The Court continued this hearing from July 14, 2026.

Authority and Analysis Common to (1), (2) and (3)

Meet and Confer

A motion to compel further responses must be accompanied by a meet and confer declaration "showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code of Civil Procedure 2016.040, 2031.310(b)(2))

The meet and confer requirement is designed "to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order This, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes." (Stewart v. Colonial Western Agency, Inc. (2001) 87 Cal.App.4th 1006, 1016, quoting Townsend v. Superior Ct. (1998) 61 Cal.App.4th 1431, 1435, internal quotations and citations omitted.) Thus, there must be a serious effort at negotiation and informal resolution. (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1294.)

"[T]he law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (Id.) The particular level of effort required in each case depends on the circumstances including the amount of discovery propounded, the time available to confer before the motion filing deadline, and the extent to which a party was complicit in the lapse of available time. (Obregon v. Superior Ct. (1998) 67 Cal.App.4th 424, 432.) "An evaluation of whether, from the perspective of

a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit, should also be considered. Although some effort is required in all instances, the level of effort that is reasonable is different in different circumstances, and may vary with the prospects for success." (Id. at pp. 432–33.) To that end, trial courts are entrusted with discretion and judgment to determine the necessary effort required to satisfy the requirement of an informal resolution. (Id. at 433.)

In this matter, the Court notes Plaintiff properly initiated the meet and confer process via the March 31, 2026 letter.

Defendant's timely response to the letter on April 3, 2026, though standing by the responses, invited further discussion to avoid Court intervention and extended the deadline to file these motions to compel further responses by three weeks.

Despite obtaining the extension under the guise of resolving the issues, or at least engaging in further meet and confer efforts, Plaintiff appears to have made no such efforts during the almost two months between Defendant's responsive meet and confer letter and the filing of these motions. Some higher level of effort, therefore, appears reasonable and Plaintiff was complicit for the two month period between the response to the meet and confer letter and the filing of these motions. As such, the Court does not find a sufficient meet and confer process evidenced by the single exchange, a period of inaction, and the subsequent filing of these motions.

Therefore, the Court denies the motions and denies the requests for sanctions.

(4) Defendant Velazquez's Motion to Compel Further Responses by Plaintiff as to Special Interrogatories, Requests for Production of Documents and Requests for Admissions.

Facts and Analysis

On March 19, 2026, Defendant Velasquez served Plaintiff with, at issue here, a first set of Requests for Admissions, Special Interrogatories and Requests for Production of Documents.

Defendant indicates Plaintiff, on April 21, 2026, "responded with boilerplate objections, improper 'cannot admit or deny' statements, conclusory narratives, and no document production." (Declaration of Velasquez ¶3.) Defendant indicates these responses were not verified. Further, that on April 22, 2026, Defendant sent a written meet and confer letter identifying these deficiencies. That Plaintiff's counsel requested a phone call, but that Defendant reasserted a demand for a response in writing.

On May 5, 2026, Defendant Velasquez filed a single motion to compel further responses to Requests for Admissions, Special Interrogatories and Requests for Production of Documents. The motion contained a declaration from Plaintiff, a combined separate statement and a request for sanctions in the amount of \$1,600.

On June 23, 2026, this Court denied the motion, finding the separate statement inadequate.

On June 24, 2026, Defendant Valesquez filed a single motion to compel further responses the same discovery noted above, for which Plaintiff served unverified responses to on April 21, 2026. Defendant states "Plaintiff's responses to each set consisted entirely of boilerplate, copy-pasted objections with no substantive answers."

The Court continued the hearing on these motions to this hearing date.

To start, the general rule is that unsworn responses are tantamount to no responses. (Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 636.) When no responses are received, there is no 45-day time limit to file a motion to compel initial responses and a motion to deem admissions admitted. (Code Civ. Proc, § 2030.290(a).)

However, because these responses at issue here consisted solely of pure objections on various legal grounds, no client verification was required under Code of Civil Procedure §2031.250(a), the discovery has been responded to and a motion to compel further responses within the 45 day time period (plus service) is required. The court in Food 4 Less Supermarkets, Inc v. Superior Court (1995) 40 Cal.App.4th 651, 657 summarizes this issue as follows:

"In contrast, subdivision (g) of section 2031 specifically provides that a response containing 'only objections' need not be signed by the party. The reason is clear. As Blue Ridge so cogently observed: '[O]bjections are legal conclusions interposed by counsel, not factual assertions by a party...' [citation omitted] That is, an objection is based upon counsel's legal analysis of the matter (e.g., the document is privileged) as compared to a response which is based upon a party's factual representation of the matter (e.g., the document does not exist). There is absolutely no reason to require a party to verify an objection. It is sufficient to have the attorney sign the objection(s). If the attorney is wrong, the court will so decide after conducting the appropriate proceedings to determine if, for instance, the claim of privilege lies. Requiring the objection to be verified by the party would add nothing to the trial court's analysis. (emphasis in original.)

Therefore, the 45 day period applies because section 2031.250(a), for instance, states an objection-only response need not be verified, an objection is a code-compliant response, an objection-only response cannot be construed as the equivalent of no response at all in the same way untimely or unverified substantive responses are considered. (See also sections 2033.230, 2033.240(a) as to admissions; sections 2030.240 and 2030.250 as to interrogatories.) According to Weil & Brown, "...the 45-day limit probably also applies where the response is unverified and includes only objection [Y]ou should serve your motion within 45 days of unverified objections." (Civil Procedure Before Trial, Ch.8:1492.4.)

In sum, no party verification is required as to "boilerplate, copy-pasted objections with no substantive answers" and the service of such responses starts the 45 day period.

As the responses were served April 21, 2026 by mail. Therefore, the deadline, therefore, to file a motion to compel further responses was June 10, 2026 (45 days plus 5 days extension as to mailing pursuant to Code of Civil Procedure section 1013.)

This motion was filed June 24, 2026.

The 45-day requirement (plus the extension for service) is jurisdictional and mandatory and a late filed motion to compel must be denied. (Sexton v. Sup. Ct. (Mullikin Med. Ctr.) (1997) 58 Cal.App. 4th 1403, 1410.)

Therefore, the Court denies the motion and request for sanctions.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.